

Smt. Preeti Manchanda Wife Of Shri ... vs Vishal Manchanda Son Of Shri Baldev ... on 20 January, 2023

Author: Sameer Jain

Bench: Sameer Jain

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 6/2021

Smt. Preeti Manchanda Wife Of Shri Vishal Manchanda, Daughter
Of Shri Sudesh Bhatiya, Aged About 36 Years, Plot No.7, New
Colony, District Bundi, Bundi (Raj.)

---Petitioner

Versus

Vishal Manchanda Son Of Shri Baldev Singh Manchanda, Aged
About 40 Years, Resident Plot No.29, Govind Nagar First,
Vishtaar-B, Ved Ji Ka Choraha, Niwaru Road, Jhotwara, Jaipur
(Raj)

---Respondent

For Petitioner(s) : Mr. Pawan Kumar Verma, Adv. For Respondent(s) : Mr. Ravindra Singh Shekhawat, Adv.

HON'BLE MR. JUSTICE SAMEER JAIN Order 20/01/2023

1. This transfer application has been filed by the applicant-wife under Section 24 read with Section 151 of the Code of Civil Procedure seeking transfer of Case No. 1047/2020 titled as Vishal Manchanda vs. Preeti Manchanda, filed by the non-applicant- husband under Section 9 of the Hindu Marriage Act, 1955 from Family Court No. 1 Jaipur to Family Court, Bundi.

2. Learned counsel for the applicant-wife has submitted that the marriage between the parties was solemnized on 08.03.2011. Out of the wedlock, a son and daughter were born, who are presently aged 11 and 7 years respectively. Learned counsel for the applicant submitted that soon after the marriage, the non- applicant started harassing the applicant for dowry. Moreover, (2 of 3) [CTA-6/2021] upon the applicant's inability to comply with the said demands, she was thrown out of her marital home by the non-applicant- husband. It was submitted that the applicant is presently residing in Bundi. Thereafter, the applicant filed application under Section 125 of Cr.P.C. for maintenance in addition to a complaint under Section 498A and 406 of IPC as well as an application for divorce under Section 13 of the Hindu Marriage Act in Bundi. Moreover, learned counsel for the applicant-wife argued that the applicant is an unemployed lady who has the sole responsibility to take care of her minor children aged 11 and 7 years. Furthermore, the distance between Jaipur and Bundi is over 200 km. In this regard, it was argued that the applicant does not possess the financial

strength to commute the said distance on every date of hearing in the matter. Therefore, it was urged that the application filed by the non-applicant-husband under Section 9 of the Hindu Marriage Act, 1955 in Jaipur be transferred to the Family Court, Bundi.

3. Learned counsel for the non-applicant-husband has vehemently opposed the transfer application. However, he was not able to refute the fact that multiple proceedings, arising out of the matrimonial relationship, are pending against him in Bundi.

4. Considering the contentions put forth by the counsel for the parties, considering that multiple proceedings arising out of the marriage are pending adjudication in Bundi; that the applicant is a poor and unemployed lady who has the sole responsibility to take care of her minor children aged 11 and 7 years; that the applicant is presently residing in Bundi; that the distance between Jaipur and Bundi is over 200 km; considering the provisions of Section 19 of the Hindu Marriage Act and relying upon the judgment of the Hon'ble Apex Court in N.C.V. Aishwarya vs. A.S. Saravana Karthik (3 of 3) [CTA-6/2021] Sha: Civil Appeal No. 4894/2022 wherein it was held that in matrimonial matters, the Court has to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life, this Court deems it just and proper to transfer Case No. 1047/2020 from Family Court No. 1 Jaipur to Family Court, Bundi.

5. Accordingly, the present transfer application is allowed. The Case No. 1047/2020 be transferred from Family Court No.1 , Jaipur to Family Court, Bundi.

6. Both parties are directed to appear before the transferee Family Court, Bundi on 20.02.2023. By that time, the record of the case be transmitted to the transferee Court by the Court concerned. It is made clear that if any of the parties would not appear on the date fixed by this Court, the transferee court would be at liberty to proceed in accordance with law.

7. It is expected that the learned Family Court, Bundi shall dispose of the matter as expeditiously as possible; preferably within the prescribed time period as stipulated in the Act.

8. Stay application and other pending applications, if any, stand disposed of.

(SAMEER JAIN),J ANIL SHARMA /6 Powered by TCPDF (www.tcpdf.org)